

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
July 16, 2026
8:30 a.m./1:30 p.m.

2. DANIELLA BROUGHER V. ROBERT BROUGHER

PFL20210176

Order to Show Cause

On April 29, 2026, Respondent filed an Order to Show Cause and Affidavit for Contempt (OSC) alleging two counts of contempt. It was personally served on May 5, 2026 along with all other required documents.

The parties are ordered to appear for the arraignment.

Request for Order

On April 24, 2026, Respondent filed a Request for Order (RFO) seeking visitation orders. It was personally served on May 5th, however Respondent did not serve the required Notice of Tentative Ruling or a blank FL-320.

Petitioner filed a Responsive Declaration to Request for Order on June 1st. It was served on May 26th along with an FL-300 however the court does not have an FL-300 filed by Petitioner.

The parties attended Child Custody Recommending Counseling (CCRC) on June 4, 2026. They were unable to reach any agreements so a report with recommendations was prepared on June 30, 2026 and mailed to the parties on July 1st.

Respondent is requesting an order allowing the minor to transfer from Sutter's Mill Elementary School to Northside Elementary School. He further requests modification to the parenting schedule.

Petitioner opposes Respondent's request for a school change and increased parenting time. Instead, she asks that she be allowed to increase her parenting time with the minor.

After reviewing the filings as outlined above the court finds the recommendations contained in the June 30, 2026 CCRC report to be in the best interests of the minor. They are hereby adopted as the orders of the court. Additionally, the minor is to be enrolled in Northside Elementary School for the 2026-2027 school year.

Respondent is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

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TENTATIVE RULING #2: THE PARTIES ARE ORDERED TO APPEAR FOR THE ARRAIGNMENT ON THE OSC.

THE COURT FINDS THE RECOMMENDATIONS CONTAINED IN THE JUNE 30, 2026 CCRC REPORT TO BE IN THE BEST INTERESTS OF THE MINOR. THEY ARE HEREBY ADOPTED AS THE ORDERS OF THE COURT. THE MINOR IS TO BE ENROLLED IN NORTHSIDE ELEMENTARY SCHOOL FOR THE 2026-2027 SCHOOL YEAR.

RESPONDENT IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO* LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.